

HOUSE BILL 1173

By Williams

AN ACT to amend Tennessee Code Annotated, Title 12,
Chapter 3, relative to public purchases.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 12-3-201(8)(B), is amended by deleting subdivision (8)(B) and substituting:

(8)

(B) "Goods" also means all improvements to real property, including, but not limited to, buildings, structures, equipment, fixtures, and anything else permanently attached to real property, but does not include real property;

SECTION 2. Tennessee Code Annotated, Section 12-3-1201(c), is amended by deleting the subsection and substituting:

(c) To the extent permitted by federal law or regulations, local governments may make purchases of:

(1) Goods, except motor vehicles other than those manufactured for a special purpose as defined in § 12-3-1208, or services included in federal general service administration contracts or other applicable federal open purchase contracts either directly or through the appropriate state agency; provided, that no purchase under this section shall be made at a price higher than that which is contained in the contract between the general services administration and the vendor affected; and

(2) Goods and services directly, without bid or quotations, from vendors awarded general services administration (GSA) schedule contracts at prices

equal to the vendor's current GSA schedule price. The terms and conditions agreeable to a local government may be used in lieu of the GSA terms and conditions in such purchases.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.